



Employee Handbook

January 2026



Dear Research Foundation Employee:

Welcome to the SUNY Research Foundation. As a member of the RF family, you are part of an organization and larger SUNY research community whose mission is to advance institutional excellence and drive cutting-edge research, innovation, economic development, and upward mobility across New York State and beyond.

As the RF is a separate non-profit education corporation and is not part of the State of New York system, it has its own policies and procedures and manages its own independent employee benefits programs, compensation plans, affirmative action policies, and other matters that affect you as an employee.

At the same time, and consistent with our mission and service to SUNY, the RF is committed to transparency, accountability, integrity, and exemplary ethics. To that end, the RF may provide information about its finances, business decisions, relationships, employees, and other aspects of the RF's operations. Disclosures about employees may include, but are not limited to, employee title, business address, years of service and salary information. Those disclosures are managed by the RF's Records Access Officer. Our [Code of Conduct](#) demonstrates our adherence to the highest ethical standards.

The [RF website](#) provides a vast range of resources that serve our SUNY faculty and campus customers and report about our business to our many audiences and stakeholders. Your *Employee Handbook* is one such resource that should be reviewed and relied upon regularly in the performance of your work.

SUNY oversees nearly a quarter of academic research in New York. In my dual role as RF President and Executive Vice Chancellor for Academic Affairs and Provost for SUNY, I am honored to have the opportunity to work with you and SUNY leaders, faculty, and staff to grow SUNY's research portfolio and together make SUNY the best place for faculty, students, and staff to research, innovate, and solve the world's most pressing problems.

Sincerely,

Melur K. "Ram" Ramasubramanian

Table of Contents

About this Handbook	6
Vision, Mission, Values	8
Diversity and Inclusion	8
What is the Research Foundation?	9
Human Resources Overview	9
Working at the Research Foundation	9
Introduction to Your Job	9
Conditions of Employment - Employment-at-Will.....	10
Code of Conduct	10
Employment Eligibility	11
New Employee Orientation	11
Standard Workweek/Time and Attendance.....	11
Time Reporting	11
Travel	12
Breaks and Meal Periods.....	12
Lactation Breaks and Accommodation	13
Personnel File.....	13
Disclosure of Employee Information under Freedom of Information Law	13
References and Employment Verifications	13
Workplace Issues	14
Equal Employment Opportunity & Antidiscrimination Policy.....	14
Reproductive Health Decision Making.....	14
Reasonable Accommodations	15
Preventing Harassment in the Workplace	15
Resolving Allegations of Discrimination, Harassment, and Retaliation Complaints	15
Prohibition against Retaliation	16
Progressive Discipline Policy	16
Drug-Free Workplace Policy	16
Conflict of Interests, Nepotism, and Gifts	17
Intellectual Property Policy.....	18
Solicitation and Distribution	18
Raising Concerns and Reporting Violations	19
Zero Tolerance for Retaliation	19

Proper Reporting	19
Rights and Remedies for Whistleblowers under the Federal Acquisition Regulation (FAR) ...	20
Information Security and Technology	21
Information and Data Security	21
Special Considerations Related to the Internet and Electronic Communications	22
Research Foundation Property	23
Safety	23
Workplace Safety	23
Workplace Violence.....	23
Airborne Infectious Disease Prevention Plans	24
Compensation	24
Pay Transparency	24
Salary	25
Position Classification Policy	25
Time Reporting and Your Paycheck	25
Nonexempt Employees	26
Exempt Employees.....	26
Overtime.....	27
Direct Deposit	27
Paid Time Off & Leave	28
Paid Time Off (PTO)	28
Paid Time Off Sick.....	28
Paid Time Off Vacation and Personal.....	29
Paid Time Off Parental.....	29
Holidays	29
Leave for Service in the Uniformed Services	30
Jury Duty	30
Cancer Screening Leave.....	30
Voting Time Leave	30
Blood Donation Leave	30
Bone Marrow Donation.....	31
Crime Victims/Witness Leave	31
Volunteer Emergency Responder Leave.....	31
Paid Prenatal Leave	31

Personal Leave of Absence	31
Child Care Leave.....	31
Family and Medical Leave.....	31
New York State Paid Family Leave.....	32
Benefits	33
Benefits for All Employees	33
Workers' Compensation Insurance	33
Short-Term Disability Benefits	34
Unemployment Insurance	34
RF Ride Commuter and Parking Benefit	34
International Travel Assistance	35
New York College Savings Program	35
Additional Benefit Information	35
Benefits for Regular and Postdoctoral Employees.....	35
Benefits for Summer Employees.....	35
Benefits for Graduate Student Employees	36
Benefits for Undergraduate and Hourly Student Employees	36
Other Services Offered	36
Employee Assistance Program (EAP).....	36
Communications.....	36
Posting Notices.....	36
Contacts.....	37

[Acknowledgement](#)

About this Handbook

The information contained in this handbook is presented as a guide for employees of The Research Foundation for The State University of New York (“RF”), and highlights information about the RF’s [policies](#), [procedures and guidance](#), and [benefits](#). It is an introduction to the RF, our vision, mission, and values, and what you can expect from us and what we expect from you.

We believe employees are key to our long-term success and understand the importance of a positive working environment, which is accomplished by maintaining, communicating, and adhering to the RF's policies. The policies create a positive, productive, and meaningful work environment, where teamwork is the norm and pride is evident. RF policies also enhance our culture of compliance. They ensure that our day-to-day actions and behaviors are consistent with the RF’s purpose and strategy.

Please understand that this handbook only highlights RF policies, procedures and guidance, and benefits for your education. Employees are expected to read and familiarize themselves with the RF’s policies and procedures, which are all available on the [RF Website](#). In order to retain necessary flexibility in the administration of policies and procedures, the RF reserves the right to make revisions without notice. In the event of conflicts or differences between the wording of the policies themselves, and the summaries of this handbook, the terms of the policies will govern.

This handbook also summarizes benefits currently available to our employees. In the event of conflicts or differences between the wording of the benefit plans themselves, and the summaries of this handbook, the terms of the benefit plan will govern.

The RF and/or the plan administrator have the sole discretion to determine eligibility for benefits, and interprets and administers these plans. The RF reserves the right to change, revise or terminate, or change the terms and conditions of any of the benefits discussed in this handbook without advance notice.

This handbook provides an overview and should not be considered as your only source of information about the RF and your job. In fact, we want you to make every effort to learn as much as possible about the policies, procedures, and objectives applicable to your job and function through your manager and fellow employees.

The RF will strive to keep you informed and updated on new policies, benefits, organization information, and other important news through meetings, communications and via the [RF Website](#).

Remember, if you have a question concerning any of the information contained in this handbook, please consult with your supervisor, your operations manager, your local campus RF Human Resources Office or the Central Office of Human Resources at (518) 434-7080.

The information contained in this handbook is not a contract and does not alter the at-will employment relationship. This handbook supersedes all prior handbooks and written or verbal guidance, except as provided herein. The RF reserves the right to add, supplement, modify or abolish any personnel policies or handbooks without notice and in its sole discretion.

Vision, Mission, Values

Vision

The Research Foundation partners with SUNY to make it the best place for faculty, students, and staff to research, innovate, and solve the world's most pressing problems.

Mission

The Research Foundation for SUNY provides talent, services, and technology that empower SUNY to research, innovate, and transfer discoveries that transform the world's knowledge economy.

Values

In carrying out its mission, the RF values:

- Service
- Learning
- Agility
- Transparency
- Diversity
- Innovation
- Integrity

The [Strategic Plan](#) and [Mission, Vision, and Values](#) may be found on the RF website.

Diversity and Inclusion

Diversity and inclusion are fundamental to the RF's culture and mission. We value the many characteristics – age, race, ethnicity, gender, gender identity, diversity and expression, religion, national origin, disability, sexual orientation and veteran status, among others – that make people unique.

We believe that creating a working environment that welcomes and celebrates differences enhances productivity, creates personal and professional opportunities, unleashes each individual's full potential and fuels innovation.

At the RF, inclusion means embracing diversity of thought and creativity in the work that we perform and with the groups of employees, researchers, partners, and sponsors with whom we work.

Because diversity makes us stronger and smarter, we call on all members of our RF community to share in the responsibility of weaving inclusiveness, recognition of the individual, and personal empowerment into the very fabric of our organizational culture so that, in partnership with SUNY, we will achieve our shared goal of cultivating New York's competitiveness and attracting the best and brightest talent from across the United States and around the world.

Additional information about the RF's commitment to diversity and inclusion is on the [Diversity and Inclusion](#) webpage.

What Is the Research Foundation?

The RF mission is to provide talent, services, and technology that empower SUNY to research, innovate, and transfer discoveries that transform the world's knowledge economy.

As the largest comprehensive university-connected research foundation in the country, the RF provides essential administrative services that enable SUNY faculty to focus their efforts on educating students and performing life-changing research across a wide range of disciplines including Artificial Intelligence, Clean Energy, Biotechnology, Longevity, Substance Addiction, Nextgen Quantum Computing, Environmental Health, and Resiliency.

The RF works with the academic and business leadership of SUNY campuses to facilitate research and discovery by administering sponsored projects and delivering intellectual property and technology transfer services that fuel innovation and move ideas and inventions to the marketplace. It supports SUNY with a common set of people, technology and processes that help faculty write and submit grant proposals to agencies, foundations and companies; establish contracts and manage funding awarded to run campus-based research projects; and protect and commercialize intellectual property created within those projects all while promoting transparency and accountability throughout the process.

The RF is a private non-profit educational corporation that is tax-exempt under Internal Revenue Code (IRC) Section 501(c) (3).

Human Resources Overview

The RF strives to provide excellent customer service through comprehensive, integrated support to our employees. Each campus has either an HR office or an office that administers RF policies and procedures and provides day-to-day services in coordination with the campus operations manager. These services include recruitment, processing appointments to payroll, providing new employee orientation information, assisting with benefit enrollment, administering salary and leave policies, maintaining employee records and implementing equal employment opportunity procedures, in addition to other services.

For more information on the RF [policies](#) and [procedures](#) at your location and the services available to you as a RF employee, please contact your local campus RF Human Resources Office. You may also contact individuals in the appropriate department at RF's Central Office for additional assistance, using the [Contact Us](#) webpage.

Working at the Research Foundation

Introduction to Your Job

Whether you are a new employee or an experienced member of the RF team, your performance on the job contributes to the successful functioning of sponsored program administration and innovation support services.

RF employees can be found in administrative offices, at archaeological digs in Central America,

in medical research labs or in the classrooms of third world countries. Whatever specific job you are doing and from wherever you are working, you are representing yourself, the RF sponsored project or administrative position for which you work, and the entire RF organization.

A positive, cooperative, self-motivated, courteous, and professional attitude is an essential element of every position. While different positions have different areas of responsibility, we all need to work as a team, and we expect each employee to pitch in as necessary.

Since ground rules vary depending on your job and location, ask your supervisor for the proper work rules to follow. The RF encourages you to maintain a professional appearance with proper dress attire.

Conditions of Employment - Employment-at-Will

Employment with the RF is on an at-will basis, meaning the employment relationship can end at any time by the employee or the employer. An employee-at-will relationship means there is no specified length of time the employment relationship is expected to last. Accordingly, the employment relationship can, in general, end at any time either by your decision or that of the Research Foundation.

Employees who are subject to a Collective Bargaining Agreement (“CBA”) are subject to the terms and conditions of the CBA.

Code of Conduct

Our collective commitment to the highest ethical standards starts with each individual’s complete review and understanding of the RF [Code of Conduct](#).

All Research Foundation Employees and Representatives are expected to:

- Read and be familiar with our Code of Conduct;
- Act in accordance with our Code of Conduct and comply with its requirements;
- Be safe, ethical, and act in a manner consistent with applicable laws, rules, regulations, and RF policies, values, and goals;
- Ask questions;
- Report concerns if you become aware of violations of the Code of Conduct, RF policies, and applicable law; and
- Cooperate fully when responding to an audit, review, request for records, or investigation.

In addition, Managers, Supervisors, and other Research Foundation Leaders must:

- Lead by example, be a positive role model and support their team in a respectful and inclusive environment;
- Encourage others to find their voice, speak up without fear of retaliation, and allow others to be heard;
- Listen to concerns and respond appropriately;
- Not tolerate, and promptly report, discrimination, retaliation, or harassment;
- Help others understand what is expected of them; and
- Equitably enforce RF policies.

To help you make good decisions when doing your job, the RF Code of Conduct and its 10 Pillars should be your first point of reference. For more information, refer to the RF [Code of Conduct](#).

Employment Eligibility

The RF complies with the Immigration Reform and Control Act of 1986, as amended, and other federal laws which require employers to verify employees are authorized to work in the United States, regardless of citizenship. All new employees are required to complete an Employment Eligibility Verification form (Form I-9) and produce documents establishing identity and authorization to work at the time of hire.

As a federal contractor, the RF also participates in the E-Verify system. E-Verify is a web-based system that uses information obtained on the I-9 Form to verify employment eligibility.

For more information, please review the RF [Employment Eligibility Policy](#) or contact your local campus RF Human Resources Office.

New Employee Orientation

The Research Foundation is committed to providing employees with the information they need to perform their jobs successfully and ensure smooth transition into the organization, department, and/or unit. Your campus location will provide you with job-related information, and materials regarding benefit programs, human resources policies, and other information to support you at the RF as part of their new employee orientation.

In addition, your supervisor is the best initial source of information if you have questions regarding job duties, policies and procedures that must be followed in the workplace, and the use of facilities, equipment, and supplies.

Additional information regarding the Research Foundation is available on the [About Us](#) and [Training for New Hires](#) webpages, and from your local campus RF Human Resources Office.

Standard Workweek/Time and Attendance

The RF has established a workweek period that extends from Saturday at 12:00 a.m. to Friday at 11:59 p.m. Within this workweek period, the RF has established either a 37.5-hour or a 40-hour standard workweek as the basis for full-time employment (1 full time equivalent [FTE]).

Your supervisor will inform you of the hours for your standard workweek and will notify you of any changes in the standard workweek. Your supervisor will also establish and inform you of your work schedule. It is important for the normal conduct of business that you work as scheduled.

For more information, please review the RF [Standard Workweek Policy](#).

Time Reporting

RF employees must accurately complete time reporting documents. If you are a nonexempt employee, you will complete a biweekly time report which documents each hour you worked. This will ensure that you are paid overtime if you are eligible. If you are an exempt employee,

you will complete a monthly exception report. Rather than recording each hour worked, any exceptions to time worked are recorded.

Nonexempt time reports are due at the end of each pay period and exempt reports are due at the end of each month. Time reports must be approved by both you and your supervisor. You must certify at the time of submission that the time reported is a complete and accurate reflection of the hours worked during the applicable period. Employees who inaccurately report their time or falsify their time records are subject to disciplinary action up to and including separation of employment.

For more information, please review the RF [Time Reporting Policy](#).

Travel

Use of RF funds for business travel must be necessary to perform a valid business purpose, reasonable (not extreme or excessive), and appropriate in that the expense must be consistent with the business need or purpose. Employee business travel and related expenses must comply with RF policies and sponsor regulations.

The [RF Travel Handbook](#) provides information regarding the use of travel funds from all sources.

Should international travel be required, please review the [Export Controls](#) webpage, as well as the [International Travel Assistance](#) section below for additional information.

For more information on RF travel policies, contact your operating location's office responsible for travel reimbursement.

Breaks and Meal Periods

The RF provides unpaid meal periods to eligible employees and allows for the scheduling of rest breaks during the course of a workday. The RF recognizes the benefit of meal periods and rest breaks and understands the need of employees to attend to personal needs during the workday.

Work break period of 10 or 15 minutes may be granted at the discretion of the department head or supervisor.

The RF will provide an unpaid meal period to employees working more than six consecutive hours in a day, of not less than a half hour. Nonexempt employees must take at least a half hour meal period each day they work six hours or more and must not perform any work during the meal period. Employees working less than six hours a day may be eligible for rest breaks when they are permitted in their respective departments. Employees may not change or extend their meal or break periods without approval from their supervisor.

If you work outside of normal business hours, or work longer hours than a standard workday, different rules may apply. For additional information please contact your local campus RF Human Resources Office.

For more information, please review the RF [Meal Periods and Work Breaks Policy](#).

Lactation Breaks and Accommodation

Employees who are nursing are eligible for reasonable paid break time to express breast milk after the birth of a child. Employees are encouraged to give notice of intent to use this benefit prior to returning from any applicable leave period.

For more information, please review the RF [Lactation Break and Accommodation Policy](#).

Personnel File

Typically, your local campus RF Human Resources Office maintains your personnel file, which is a confidential file and is the property of the RF. Upon request, current and former RF employees are generally permitted access to the information in their personnel file.

Certain sensitive information, such as medical information, is maintained separately from the personnel file.

Disclosure of Employee Information under Freedom of Information Law

The RF complies with New York's Freedom of Information Law (FOIL) which requires the RF to provide, upon request, certain records and information within its possession.

While the organization is very sensitive to the disclosure of personal information, the RF may be required to provide certain employment-related documents if requested pursuant to FOIL. For example, FOIL may compel disclosure of basic employee information, such as name, title, work location, and salary.

Under New York Law, there are certain exemptions for information that is not subject to the FOIL disclosure requirement, and the RF will deny requests, in full or in part, where appropriate in accordance with those exemptions. For example, certain types of information which would cause an unwarranted invasion of personal privacy (e.g., social security number, home address) are exempt from disclosure unless otherwise required by law.

Please note that general employment information may also be subject to disclosure in other circumstances (e.g., to law enforcement or governmental entities, during an administrative proceeding, or in litigation).

Employees can visit the [RF Website](#) or contact the Records Access Officer at FOIL@rfsuny.org for more information regarding FOIL.

References and Employment Verifications

All requests for references or employment verification should be directed to the local campus RF Human Resources Office, who will generally respond to verification requests by providing dates of employment and positions held.

References given by RF employees are considered personal and not on behalf of the RF. If an RF employee provides a written reference, it cannot be on RF letterhead or via their work email address.

Workplace Issues

Equal Employment Opportunity & Antidiscrimination Policy

The RF is an equal employment opportunity employer and prohibits discrimination based on race, color, religion, creed, sex (except where sex is a bona fide occupational qualification), sexual orientation, gender identity or expression, age (over 18), national origin or ancestry, citizenship, disability, military or veteran status, marital status, familial status, domestic violence victim status, pregnancy-related condition, predisposing genetic characteristics/genetic information, an employee's or dependent's reproductive health decision making, prior arrest or conviction record, as well as any other trait protected by applicable federal, state, or local laws.

The RF strictly prohibits unlawful discrimination in any employment practices, including, but not limited to, advertising, recruitment, hiring, promotion, demotion, transfer, compensation, training, discipline, and layoffs or separation from employment. Any employee who engages in discriminatory conduct will be subject to disciplinary action, up to and including separation of employment. Employees must report any discriminatory behavior immediately. Available reporting channels include but are not limited to the following:

- Your supervisor, department head, or chair;
- Your local campus RF Human Resources Office;
- Your campus Operations Manager or Deputy Operations Manager;
- The [Speak Up RF – Ethics Hotline](#); and
- [RF Corporate Human Resources](#).

For more information, please review the RF [Equal Employment Opportunity and Antidiscrimination Policy](#) and the [Resolving Discrimination, Harassment, and Retaliation Complaints Procedure](#).

The RF is committed to a diverse and inclusive workplace, where each person is valued for their unique experiences, abilities, and viewpoints. Please read more about this Diversity and Inclusion Message on the [RF Website](#). For more information on the RF equal opportunity policies and procedures at your location, please contact your campus office that handles RF Human Resources or view the RF's [Equal Employment Opportunity and Antidiscrimination Policy](#). Please contact the operations manager at your campus or the campus RF Human Resources Office if you would like additional information on the RF's affirmative action policies, procedures and programs. You may also contact the RF's Central Office of [Human Resources](#) for additional assistance.

Reproductive Health Decision Making

The RF will not:

- Access an employee's personal information regarding an employee's, or an employee's dependent's, reproductive health decision-making, unless the employee provides prior informed consent;
- Discriminate against or take any retaliatory personnel action against an employee with respect to compensation, terms, conditions, or privileges of

- employment because of the employee's or dependent's reproductive health decision making; or
- Require an employee to sign a waiver or other document that denies the employee the right to make their own reproductive health care decisions.

An employee may bring a civil action in court, , and the court may award monetary damages, injunctive relief, reinstatement, and/or liquidated damages. Additionally, the employee may be entitled to an award of civil penalties if any retaliation is found to have occurred.

Reasonable Accommodations

The Research Foundation is committed to providing equal employment opportunities to qualified individuals with disabilities and/or sincerely held religious beliefs, and will provide reasonable accommodations to such individuals during the application/hiring process or to perform the essential functions of their positions, except where doing so would pose an undue hardship.

If you believe that you need a reasonable accommodation, you must notify your local campus office that handles RF Human Resources.

Preventing Harassment in the Workplace

The RF strictly prohibits sexual harassment and harassment because of race, color, religion, creed, sex, sexual orientation, gender identity or expression, age, national origin or ancestry, citizenship, disability, military or veteran status, marital status, familial status, pregnancy-related condition, domestic violence victim status, predisposing genetic characteristics/genetic information, an employee's or dependent's reproductive decision making, prior arrest or conviction record, or any other trait protected by applicable federal, state, or local law. Any such harassment will not be tolerated.

Any employee who engages in harassing conduct, including sexual harassment, will be subject to disciplinary action, up to and including separation of employment.

This policy applies to employees, paid or unpaid interns, and non-employees, including independent contractors, and those employed by companies contracting to provide services in the workplace. Sexual harassment can occur between any individuals, regardless of their sex, gender, or gender identity, and harassers can be a superior, a subordinate, a coworker, or anyone in the workplace including an independent contractor, contract worker, vendor, client, customer, or visitor.

As an RF employee, you are strictly prohibited from engaging in conduct that inappropriately interferes with your colleagues' work performance or that creates an intimidating, hostile, or offensive work environment.

For more information, please review the RF [Equal Employment Opportunity and Antidiscrimination Policy](#) and [Sexual Harassment Prevention Policy](#).

Resolving Allegations of Discrimination, Harassment, and Retaliation Complaints

When a person believes that they been the victim of discrimination or harassment or has

observed discriminatory or harassing behavior, they should report their concerns using the procedure for [Resolving Discrimination, Harassment, and Retaliation Complaints](#). The RF's [Sexual Harassment Prevention Policy](#) includes procedures for reporting and investigating reports of sexual harassment in the workplace. You may also obtain copies of these procedures from your local campus RF Human Resources Office. Supervisors and managers who become aware of or observe any discriminatory, harassing, or retaliatory conduct must immediately report such conduct to their local campus RF Human Resources, the campus Operations Manager or a Human Resources representative in Central Office, or any of the other reporting avenues set forth in the policies referenced above. Failure to do so may result in disciplinary action up to and including separation of employment.

[Prohibition against Retaliation](#)

The RF prohibits retaliation against anyone for reporting violations or potential violations of law, policy or misconduct, utilizing the procedure for filing a complaint, for participating in an investigation of discrimination, harassment, or other misconduct, or engaging in legally protected activities.

Employees who make intentionally false reports of alleged discriminatory, harassing or retaliatory conduct, or other violations will be subject to disciplinary action.

If you believe you have been subjected to retaliation or have become aware that another employee is being retaliated against, you must notify your local campus RF Human Resources Office, your campus [Operations Manager](#), a Human Resources representative in Central Office, or the RF's Office of Compliance Services. Any employee who retaliates against an individual who reports under this policy or participates in an investigation will be subject to disciplinary action, up to and including separation of employment.

[Progressive Discipline Policy](#)

The RF uses progressive discipline to address an employee's work performance issues and/or inappropriate behavior, including non-compliance with RF policies and procedures. The intent of progressive discipline is to help employees correct their issue(s) to become successful, productive workers. Progressive discipline provides managers and supervisors with a consistent and fair process for handling disciplinary issues.

The RF may use any level or combination of progressive discipline steps, up to and including separation of employment, and may proceed directly to separation of employment under certain circumstances, in the RF's sole discretion. All RF employees, including supervisors and managers, are subject to progressive disciplinary action.

For more information, please review the RF's [Progressive Discipline Policy](#) and [Involuntary Termination of Employment](#) procedure.

[Drug-Free Workplace Policy](#)

As a federal contractor, the RF, is required to maintain a drug-free workplace.

In connection with the RF's drug-free workplace compliance efforts, among other things:

- Each employee will be given a copy of the RF's [Drug-free Workplace Policy](#) during the new

employee orientation.

- Employees must, as a condition of employment, report any criminal conviction under a criminal drug statute for violations occurring on the RF premises or while conducting RF business within five calendar days after the conviction.
- The RF will take direct action against an employee convicted of a workplace drug violation, which may include disciplinary action or requiring the employee to satisfactorily participate in and complete a drug abuse assistance or rehabilitation program.

The RF will make ongoing, good faith efforts to maintain a drug-free workplace by implementing the above requirements.

If you have any questions or need additional assistance regarding the drug-free workplace policy, contact your local campus RF Human Resources Office.

For more information, please review the RF's [Drug-free Workplace Policy](#).

[Conflict of Interests, Nepotism, and Gifts](#)

Board Members, Officers, and Employees must disclose all interests and activities, financial or otherwise, and those interests and activities of Related Parties, which may compromise, potentially compromise, or have the appearance of compromising the objective performance of their professional duties or responsibilities as an employee or representative of the RF. RF Board Members, Officers, and Employees may not have any interest in or engage in any outside activity that results in an unmanaged Conflict of Interest. All employees are subject to the RF's [Conflict of Interest Policy](#), [Nepotism Policy](#), [Gifts to Employees from Non-RF Sources Policy](#) and [Anti-Bribery Policy](#). Employees must disclose any potential conflict of interest whenever it arises.

A Conflict of Interest exists whenever a Board Member, Officer, or Employee is in a position to:

- Disclose or use RF confidential material for personal gain;
- Intentionally and illegally use the property, funds, or other resources of the RF for an unauthorized purpose; Give reasonable basis for the impression that their professional judgement is likely to be compromised;
- Influence any employment actions involving a Related Party, including decisions to hire, promote, separate, or approve any transaction related to said Related Party; or
- Solicit or accept a gift having more than a \$15 value (including money, service, loan, travel, lodging, meals, refreshments, entertainment, discount, forbearance or promise) from an outside source that could influence the employee's professional judgement or give the impression or appearance of a conflict of interest.

Please note: the [Gifts to Employees from Non-RF Sources Policy](#) governs RF Employees or Representatives whose primary workstation is the RF's Central Office. Although the standards apply broadly to all RF Employees, if you are an **RF Employee or Representative working at a SUNY campus you must follow the specific requirements outlined in that campus's local policy governing the acceptance of gifts and not this policy. For additional assistance, please contact your local ethics officer or counsel.**

For more information, please review the [Conflict of Interest Policy](#), [Nepotism Policy](#), [Gifts to Employees from Non-RF Sources Policy](#) and [Anti-Bribery Policy](#).

Intellectual Property Policy

The RF provides intellectual property management and technology transfer services that fuel innovation and move ideas and inventions from inception to the marketplace. These services help SUNY and the RF protect, develop, fund, and market novel ideas or inventions by:

- Identifying commercially viable inventions made within the SUNY ecosystem;
- Conducting technology assessments;
- Protecting intellectual property with patents and copyrights;
- Maintaining a portfolio of strong intellectual property assets;
- Cultivating relationships with industry and inventor partners;
- Providing businesses and investors with a portfolio of innovations that can be licensed or spun into start-up companies; and
- Managing the licensing process.

Through its [Intellectual Property Policy](#), the RF has adopted as its own [SUNY's Patents, Inventions and Copyright Policy](#), both of which are codified as state regulations at 8 N.Y.C.R.R. §335.28 and §335.29, respectively, as well as all related procedures and guidelines concerning such policies (collectively, the “RF IP Policies and Procedures”).

RF employees are required to comply with the RF IP Policies and Procedures, including by, among other things: (i) promptly disclosing any Intellectual Property (as defined in SUNY's Patents and Inventions Policy) to their applicable campus technology transfer office (the “Applicable RF TTO”) using the Applicable RF TTO's designated new technology disclosure form; (ii) cooperating with the RF, SUNY, and, to the extent applicable, the sponsor of any underlying research associated with such Intellectual Property, and (iii) execute any such documents as may be necessary to protect the subject Intellectual Property as directed by their Applicable RF TTO.

Solicitation and Distribution

The Research Foundation promotes an environment free from distracting solicitation that does not relate to Research Foundation business or interest.

Employees are not permitted to engage in solicitation during work time, or at any other time if such distribution or solicitation interferes with any work activities. Distribution of literature related to such solicitation is prohibited.

The RF may authorize the solicitation of funds, goods, or services for charitable purposes, or for Research Foundation or SUNY-sponsored activities.

You should be aware that persons not employed by the RF may not, without prior authorization, solicit, sell, or distribute merchandise, services, or literature in RF work areas for any purpose at any time.

This is not intended to infringe upon your right to engage in activity protected under the National Labor Relations Act. For more information on these guidelines, contact your local campus RF Human Resources Office.

Raising Concerns and Reporting Violations

As Research Foundation employees and representatives, we have a responsibility to speak up if we believe someone may be engaged in improper conduct. Suspected violations of the law, our Code of Conduct, or other [RF policy](#), must be addressed as soon as possible—before significant consequences develop.

If you know of, or have good reason to suspect, an unlawful or unethical situation, a violation of [Research Foundation policy](#), or believe you are a victim of prohibited workplace conduct, **do not conduct your own investigation**. Instead, report the matter immediately through any of the following channels:

- Your supervisor, department head, or chair
- Your campus RF Human Resources Office
- Your campus [Operations Manager or Deputy Operations Manager](#)
- The [Speak Up RF – Ethics Hotline](#)
- [RF Corporate Human Resources](#)
- [RF Office of General Counsel](#)
- [RF Office of Internal Audit](#)
- [The RF President](#)

You should call 911 or immediately contact the police if there is an immediate threat to health or safety.

Complaints or concerns may also be filed anonymously through the Speak Up RF – Ethics Hotline online at <http://www.rfsuny.org/speakuprf-ethicshotline> or by calling 800-461-9330.

Zero Tolerance for Retaliation

The RF will not tolerate the harassment or targeting of individuals who raise concerns or participate in RF investigations of potential violations of law or [RF Policy](#). Retaliation can be any action that would keep a person from coming forward to make or support a claim or participating in an investigation into a claim, which can include, but is not limited to: threats, separation of employment, unequal treatment, suspension, demotion, reduction in salary or benefits, threats to contact immigration authorities, disclosure of an employee's personnel file, or actions or threats to take actions that would adversely impact a former employee's current or future employment. If you think that you or someone else has been retaliated against due to reporting a complaint, participation in an investigation or review, or otherwise, report the matter through one of the channels listed above.

Proper Reporting

Individuals are encouraged to report concerns regarding perceived misconduct. This does not

mean you must be certain that a violation is taking place; you just have to believe that the information you are providing is accurate. It is a violation of the Research Foundation's Code to knowingly make false accusations when reporting.

For more information please review the [Fraud and Whistleblower Policy](#).

Rights and Remedies for Whistleblowers under the Federal Acquisition Regulation (FAR)

The Federal Acquisition Regulation (FAR) Program has implemented enhanced whistleblower protection for employees of Federal contractors and subcontractors. Employees are protected from reprisal for disclosure of, "information that the employee reasonably believes is evidence of gross mismanagement of a Federal contract, a gross waste of Federal funds, an abuse of authority relating to a Federal contract, a substantial and specific danger to public health or safety, or a violation of law, rule, or regulation related to a Federal contract (including the competition for or negotiation of a contract).¹"

Pursuant to the FAR: "An employee of a contractor, subcontractor, or grantee may not be discharged, demoted, or otherwise discriminated against as a reprisal for disclosing the aforementioned types of information to:

- (a) A Member of Congress or a representative of a committee of Congress.
- (b) An Inspector General.
- (c) The Government Accountability Office.
- (d) A Federal employee responsible for contract or grant oversight or management at the relevant agency.
- (e) An authorized official of the Department of Justice or other law enforcement agency.
- (f) A court or grand jury.
- (g) A management official or other employee of the contractor, subcontractor, or grantee who has the responsibility to investigate, discover, or address misconduct.

An employee who initiates or provides evidence of contractor, subcontractor, or grantee misconduct in any judicial or administrative proceeding relating to waste, fraud, or abuse on a Federal contract or grant shall be deemed to have made a disclosure.

A whistleblower who believes that they have been subject to reprisal for a protected disclosure may submit a claim to the Inspector General of the sponsor agency within three years of the date on which the alleged reprisal took place. The Inspector General may order the RF to take action to abate the reprisal, award the complainant compensatory damages and/or costs and attorneys' fees.

Please note: This right to file a complaint with the appropriate Inspector General is independent and distinct from the employee's right to file a concern or complaint under the RF's [Fraud and Whistleblower Policy](#).

¹ [41 U.S.C. 4712, sec. 828\(a\)](#)

For more information on RF's Intellectual Property Policy, SUNY's Patents, Inventions and Copyright Policy, the disclosure process, or any other related matters please contact the RF's Office of Industry and External Affairs at (518) 434-7061.

Information Security and Technology

Information and Data Security

To fulfill the mission of the RF, it is essential that authorized users have access to RF data ("RF Data") and information technology resources ("RF Resources") to accomplish tasks related to their jobs. Authorized users must use RF Resources and RF Data in a responsible manner as outlined in the policy on Acceptable Use and Security of RF Data and Information Technology.

Due to the level of risk that unauthorized access to, or loss of, RF Data poses to the RF and SUNY, users should take all reasonable precautions to mitigate the risk of such unauthorized access or loss. If you are unaware of the proper security procedures at your campus, ask your supervisor for assistance in learning these procedures. At a minimum, users must:

- Not share computer login and password or personal information with anyone, including supervisors, information technology services, immediate colleagues, or administrative support staff;
- Not sign on with their account to grant others access to privileged resources;
- Not use someone else's ID and/or password; and
- Change temporary passwords assigned by an administrator.

When accessing the RF internal systems remotely, the same responsibilities and requirements apply as if you were working at the office and employees should take measures to ensure RF data is protected and secure.

All records, data, and information ("information") that are created in the course of business, including without limitation, e-mail, memoranda, spreadsheets, internet usage, and other documents or files, whether actual paper documents or in electronic form, are and remain the exclusive property of the RF.

The RF takes steps to ensure that sensitive information remains confidential yet is available when needed. Except as required in the performance of your duties for the RF, you may not use or disclose any confidential information and must, when you leave the RF, return all confidential information, including documents, electronically-stored information, notes, computer disks, flash drives, external hard drives, etc., which contain such confidential information.

Employees with authorized access to confidential information stored on the RF network or in any media format must take extra precautions to protect the data, consistent with the requirements outlined in the [RF Confidential Information Policy](#).

Confidential information includes any information that specifically identifies or describes an employee or an employee's protected health information; or RF organizational information,

which if disclosed or released, would potentially expose the RF to legal, financial, competitive, or other non-beneficial risks.

Some examples of confidential information include, but are not limited to:

- Internal memos and letters;
- Financial and audit records;
- Board of Director materials;
- Employee health or educational records;
- Employee personnel records;
- Employee social security numbers and addresses;
- Reports from consultants into the operations of the RF; and
- Information regarding any proprietary or licensed technology

Employees should exercise caution when disclosing documents, employee information, including personal health information, social security numbers and addresses, spreadsheets, data or other information over the Internet and be sure to take appropriate measures to secure and protect data.

Employees are responsible for immediately reporting any suspected violation(s) of this policy or any other action which fails to protect the confidentiality of RF information to the manager/supervisor, department vice president/head, functional director, or RF operations manager/designee, as appropriate, at the campus location. If the suspected violation involves an “electronic” breach of information, the operations manager/designee or department vice president and Office of Compliance Services must be notified per the RF's [Notification Procedure for Electronic Breach of Information Security](#).

The RF’s Confidential Information Policy is not intended to interfere with an employee’s right to engage in activity protected by the National Labor Relations Act, or to discuss the terms and conditions of their employment.

A strong commitment to transparency is how we earn the trust and respect that is critical to our success. To that end, the RF may provide information about its finances; business decisions; relationships; employees; and other aspects of the RF’s operations. Disclosures about employees may include, but are not limited to, employee title, business address, years of service, and salary information. Those disclosures will be managed through the RF’s Records Access Officer at FOIL@rfsuny.org.

[Special Considerations Related to the Internet and Electronic Communications](#)

Access to and use of the Research Foundation’s network, computers, devices, internet, email, and other digital media and platform is for work purposes. Personal use of the internet should be minimized and needs to conform to the [RF’s Acceptable Use and Security of RF Data and Information Technology](#).

The RF provides computer and telephone equipment and related facilities for the purpose of conducting RF business. The RF reserves the right to monitor and review, by any lawful means at any and all times, any telephone conversations or transmissions, electronic communications or

transmissions, or internet access or usage by an employee by any electronic device or system, including but without limitation the use of a computer, telephone, wire, radio, or electromagnetic, photoelectronic or photo-optical systems, and information stored in a computer or exchanged over RF-provided systems, including without limitation e-mail, voice mail, and/or stored e-mail or voice mail messages, at the RF's discretion without prior notice. Use of RF-provided systems shall be considered consent to monitoring.

Employees are expected to conduct their electronic communications in the same professional and respectful manner as all other internal or external communications. Employees may not use RF computer facilities to conduct illegal activities of any sort or in violation of RF's policies and procedures, including without limitation infringement of copyrighted materials or harassment.

More information is available in the RF's [Acceptable Use and Security of RF Data and Information Technology Policy](#) and [Notice of the RF's Electronic Monitoring of Telephone, Email & Internet Access & Usage](#) posting. Employees who violate this policy may be subject to discipline, up to and including separation of employment.

Research Foundation Property

During your employment with the RF, you may be issued certain equipment to enable you to perform your job. Such equipment may include, without limitation, a desktop or laptop computer, cell phone, or other technical devices, security access device, telephone, parking permit, ID cards, and other property ("equipment"). This equipment is owned by the RF. If your employment ends for any reason, you must return, in good working condition and repair, all RF equipment in your possession on or prior to your separation date or as soon as practicable after your separation date.

Safety

Workplace Safety

As an employee, you have access to the RF location where you work. Access to your work location is for work purposes. For most employees, this access is usually limited on nights and weekends. For more information on this policy, please contact your campus operations manager or the campus RF Human Resources Office.

If you become involved in an accident on the job, report it immediately to your supervisor and complete the accident report form provided by your supervisor. This report is the basis for correcting any safety hazards, complying with insurance requirements, and protecting employees from future injury. Should you have concerns about the safety of your work environment, discuss your concerns with your supervisor.

Workplace Violence

The RF is committed to maintaining a workplace that is free from behavior that is considered harassing, abusive, disorderly, disruptive or violent.

Acts or threats of physical violence, including intimidation, physical harassment, and/or coercion, that involve or affect RF employees or that occur on RF or SUNY property or in the

conduct of RF business off RF premises, will not be tolerated.

The RF's [Equal Employment Opportunity and Antidiscrimination Policy](#) and [Sexual Harassment Prevention Policy](#) also contain important information for all RF employees and those acting on behalf of or conducting business with the RF about harassment.

This prohibition against threats and acts of harassment or violence applies to all persons involved in RF operations, including, but not limited to, RF employees and those acting on behalf of or working with RF employees, including temporary employees and independent contractors, and anyone else on RF property or conducting RF business off RF property.

The [Resolving Workplace Concerns Procedure](#), the [Resolving Discrimination, Harassment and Retaliation Complaints Procedure](#) and the [Fraud and Whistleblower Policy](#) are also available to all RF employees who feel that they or an RF coworker are victims of harassment and/or workplace violence.

If a manager or supervisor receives information that an RF employee has engaged in a threat or violent action, they should notify the RF Human Resources Officer or the Office of Compliance Services so the appropriate policies and procedures can be followed. If there is an immediate threat to the health and safety of any individual, please contact law enforcement.

Retaliatory action against anyone who has made a complaint of workplace violence, who has reported witnessing workplace violence, or who has been involved in reporting, investigating, or responding to workplace violence is a violation of the RF's guidelines. Those individuals found responsible for retaliatory action will be subject to disciplinary action, up to and including separation of employment.

[Airborne Infectious Disease Prevention Plans](#)

When an airborne infectious disease is designated by the New York State Commissioner of Health as a "highly contagious communicable disease that presents a serious risk of harm to the public health", the Research Foundation will implement an Airborne Infectious Disease Prevention Plan ("Plan") for each applicable worksite as appropriate, communicate and distribute a copy to employees, maintain and enforce the Plan and post a copy at each applicable worksite.

If you are at a worksite required to implement a Plan, you will receive a copy of the Plan, and a copy of the Plan will be posted at the applicable worksite. Employees are permitted to establish workplace safety committees to provide input on the Plan.

Additional information is outlined in the [HERO Act Development of Airborne Infectious Disease Prevention Plan](#) policy, the [NY HERO Act Model Airborne Infectious Disease Exposure Prevention Plan](#), or from your campus RF Human Resources Office.

Compensation

[Pay Transparency](#)

The Research Foundation, as a federal contractor, will not discharge or in any other manner

discriminate against employees or applicants because they have inquired about, discussed, or disclosed their own pay or the pay of another employee or applicant. However, employees who have access to the compensation information of other employees or applicants as a part of their essential job functions cannot disclose the pay of other employees or applicants to individuals who do not otherwise have access to compensation information, unless the disclosure is (a) in the course/scope of the employee's work duties (b) in response to a formal complaint or charge, (c) in furtherance of an investigation, proceeding, hearing, or action, including an investigation conducted by the employer, or (d) consistent with the Research Foundation's legal duty to furnish information.

The RF may not ask an applicant or current employee about their salary history information, including compensation or benefits, nor will the RF rely on an applicant's salary history information as a condition of consideration for employment or promotion, or in determining what salary to offer. The RF will not refuse to consider, employ or promote an applicant or current employee based on their salary history or their refusal to provide their salary history. Additional protections under local laws may also apply.

Salary

The RF's compensation guidelines are designed to provide you with a salary that is competitive with market conditions. All positions are classified under specific titles and salary grades or ranges. This classification system reflects job relationships and salary equity. Pay increases occur within minimum to maximum ranges assigned to each job classification.

For additional information, refer to [Salary Rules and Policies When Assigning Regular Employees](#).

Position Classification Policy

The RF has established a [Position Classification Policy](#) for the purpose of maintaining salary and wage equity and for consistency in the treatment of its employees.

The RF makes every effort to ensure that each position is classified correctly; however, sometimes job assignments vary. If your work has changed significantly, discuss the matter with your supervisor.

Your supervisor can give you a copy of the job description for your specific position. You and your supervisor should also discuss asking your Human Resources Office to review the position classification. That office has information about the standards used to determine the classification of your position.

Time Reporting and Your Paycheck

The RF's pay cycle is biweekly, generally with a Friday pay date. We make every effort to ensure our employees are paid correctly. Occasionally, however, inadvertent mistakes can happen. When mistakes do happen and are called to our attention, we will promptly make any correction that is necessary. Please review your pay stub through [Employee Self-Service](#) each pay day to make sure it is correct. If you believe a mistake has occurred or if you have any questions, please contact your local campus RF Human Resources Office.

Your time report (for nonexempt employees) or exception report (for exempt employees) is used to determine payment for services performed and is required to be completed accurately and on a timely basis. It is a violation of the RF's policy for any employee to falsify a time report, or to alter another employee's time report.

Nonexempt Employees

Each payroll check reflects regular time worked during the two weeks through and including pay day for all salaried nonexempt employees. Extra hours and overtime wages for salaried employees are paid on a two-week lag. Nonexempt employees paid on an hourly basis are generally paid on a two-week lag.

For nonexempt employees, your time report must accurately reflect all regular and overtime hours worked, any absences, early or late arrivals, early or late departures and meal breaks. When you receive each paycheck, please verify immediately that you were paid correctly for all regular and overtime hours worked each workweek. You should not work any hours outside of your scheduled workday unless your supervisor has authorized the unscheduled work in advance. Do not start work early, finish work late, work during a meal break or perform any other extra or overtime work unless you are authorized to do so and that time is recorded on your timecard. Nonexempt employees are prohibited from performing any "off-the-clock" work. "Off-the-clock" work means work you may perform but fail to report on your timecard. All time worked must be recorded, even if the work was not authorized by your supervisor in advance. Any employee who fails to report or inaccurately reports any hours worked will be subject to disciplinary action, up to and including separation of employment.

Exempt Employees

If you are classified as an exempt employee, you will receive a salary which is intended to compensate you for all time worked for the RF. This salary will be established at the time of hire or when you become classified as an exempt employee. The predetermined amount cannot be reduced because of variations in the quality or quantity of work.

Generally, an exempt employee will receive the full salary for any workweek in which work was performed. However, an exempt employee's salary may be reduced in a workweek for the following leave-related reasons:

- Full day absences for personal reasons, including vacation.
- Full day absences for sickness or disability.
- Full day disciplinary suspensions for infractions of safety rules of major significance (including those that could cause serious harm to others).
- Absences approved under the Family and Medical Leave Act (FMLA) (either full or partial day absences).
- To offset amounts received as payment for jury and witness fees or military pay.
- Unpaid disciplinary suspensions of one or more full days for significant infractions of major workplace conduct rules set forth in written policies.
- The first or last week of employment in the event you work less than a full week.

For any workweek in which work was performed, an exempt employee's salary may not be reduced for any of the following reasons:

- Partial day absences for personal reasons, sickness, or disability.
- An absence because the facility is closed on a scheduled workday.
- Absences for jury duty, attendance as a witness, or military leave in any week in which you have performed any work.
- Any other deductions prohibited by state or federal law.

Exempt employees will be required to use accrued vacation, sick, or other forms of paid time off for partial day absences in accordance with RF time reporting requirements for personal reasons, sickness or disability, and record such use on your monthly exception report. If the employee does not have sufficient paid time to cover such absences, that employee may be advanced appropriate paid time off so that the absence of less than one day is paid for in full. If there are any additional questions, please contact your local campus office which handles Research Foundation Human Resources.

An employee's gross pay may be reduced for certain types of deductions, such as: your portion of health, dental or life insurance premiums; state, federal or local taxes, social security; or voluntary contributions such as an optional retirement contribution.

Overtime

Employees will be notified by Human Resources if you are classified as exempt or nonexempt. Nonexempt employees are eligible for overtime pay in accordance with applicable law and are required to complete a time report each pay period, accurately recording the hours worked each day during that pay period.

Overtime pay is calculated based on the RF's workweek beginning Saturday at 12:00 a.m. and ending Friday at 11:59 p.m. Positions eligible for overtime pay are paid one and one-half times the regular rate of pay for all hours worked in excess of 40 in any workweek. Generally, overtime must be arranged with your supervisor in advance. Employees who work unauthorized overtime may be subject to disciplinary action up to and including separation of employment.

Exempt employees hold certain positions, including professional, administrative, and executive positions whose job classifications meet the federal and state requirement for overtime exemption. Exempt employees are compensated on a salary basis, except where otherwise permitted by law, and are not eligible for overtime pay.

Direct Deposit

The RF's [direct deposit program](#) is available to all employees who want to participate.

Employees can have all or a portion of their net pay directly deposited to any financial institution that is a member of the New York Automated Clearing House. Instructions on enrolling in direct deposit through [Employee Self-Service](#) is outlined in the [Payroll Guide](#).

For additional information on this program, contact your local campus RF Human Resources Office.

Paid Time Off & Leave

The RF offers a variety of paid time off plans and also paid and unpaid leaves, which are included in this section.

Paid Time Off (PTO)

The RF recognizes that it is important for employees to have a healthy work-life balance. Eligible employees earn accruals for vacation, sick, holiday, parental and personal time.

Eligible employees accrue paid time off based on position, classification and FTE. Unless there are special circumstances or as otherwise required by law, an employee cannot take paid time off unless it is already accrued.

Employees assigned to the following student titles are not eligible to earn paid time off accruals:

- Research Project Assistant
- Project Instructional Assistant
- Research Aide
- Senior Research Aide
- Camp Counselor-Student

For additional information on your eligibility for paid time off and how it is administered, please contact your local campus RF Human Resources Office.

Following are types of paid time off:

Paid Time Off Sick

Employees are eligible to accrue PTO sick as of their first day of employment, unless they are:

- assigned a student title(s): Research Project Assistant, Project Instructional Assistant, Research Aide, Senior Research Aide, or Camp Counselor – Student; or
- assigned to an extra service appointment.

PTO sick is available for use upon accrual.

PTO sick may be used to provide income replacement when absent from work due to mental or physical illness, injury, or health condition (regardless of whether it has been diagnosed or requires medical care at the time of the request for leave); for the diagnosis, care or treatment of an employee's mental or physical illness, injury or health condition; or an employee's need for medical diagnosis or preventative care. Sick accruals must be charged at an employee's FTE from the first day of a certified disability until the accruals are exhausted.

PTO sick may also be used to care for an eligible family member or bereavement if there is a death in the family. Sick time may also be used for issues related to domestic violence or family offense. For additional information on expanded reasons related to domestic violence or family offense please contact your local campus RF Human Resource office or refer to the [Leave Administration Handbook](#).

Family member is defined as: an employee's child, spouse, domestic partner, parent, sibling,

grandchild or grandparent, the child or parent of an employee's spouse or domestic partner and any person with whom the employee makes their home. Parent is defined as- a biological, foster, step or adoptive parent, or a legal guardian of an employee or a person who stood *in loco parentis* when the employee was a minor child. Child is defined as - a biological, adopted or foster child, a legal ward, or a child of an employee standing *in loco parentis*. **(Note: for employees working in NYC, the definition of family member may be different for certain use of PTO sick).**

PTO sick is not paid out upon separation of employment.

Paid Time Off Vacation and Personal

Subject to managerial approval, accrued vacation may be taken for rest and relaxation at employees' request. Personal time may be used with managerial approval for absences due to pressing personal business and other similar circumstances cannot be taken care of other than during normal working hours.

Your eligibility to accrue and use vacation and personal PTO depends on the date you were hired, your status as a full-time or part-time employee, classification, and position title. Your local campus RF Human Resources Office will provide you with additional details on paid time off.

Upon separation from RF employment, eligible employees will be paid for up to 30 days of accrued unused vacation. All time reports must be submitted, and all PTO reconciled before payment can be made. If an employee is paid for workdays past the date of separation, those workdays may be charged as vacation time if a balance is available.

Personal PTO is not eligible to be paid out upon separation of employment.

Paid Time Off Parental

Regular and postdoctoral employees working .5 FTE or higher are eligible to accrue parental PTO which may be used to provide income replacement for a maximum of 12 weeks during an approved Child Care Leave to bond following the birth of a child or placement for adoption or foster care.

Parental PTO must be charged at an employee's FTE and may only be used on a continuous basis within the first six months of the date of birth or placement for adoption or foster care. This PTO may not be used concurrently during a period of approved Short-Term Disability following childbirth or during Paid Family Leave.

Parental PTO is not eligible to be paid out upon separation of employment.

For additional information, including eligibility requirements, please contact your local campus RF Human Resources Office.

Holidays

Generally, RF employees are eligible for up to 13 paid holidays which are designated as observed (the location is closed) or floating (the location is open) by your campus location. If

you are required to work on an RF holiday, you will be paid for your time worked and given accruals to use at a later point in time. Unused holiday time is not paid out upon separation of employment.

For a list of holidays at your campus location, contact your local campus RF Human Resources Office.

[Leave for Service in the Uniformed Services](#)

Employees in the Armed Forces, National Guard, and military reserves will be provided with leave to fulfill their military obligations, including active duty, participation in drills and other equivalent training, reserve training, instruction, annual full time training duty, active duty for training or other annual training. Employees will be paid for up to 22 workdays or 30 calendar days, whichever is greater, during any one calendar year or any continuous period of ordered military service. After paid leave is exhausted, you may choose to use accrued vacation, holiday or personal paid time off credit or be put on leave without pay for the period of your military duty.

You may be entitled to re-employment rights and retention of full seniority benefits for all prior service upon re-employment after a period of military service for up to five years in accordance with state and federal law.

Spouses of members of the armed forces who have been deployed during a period of military conflict are allowed ten (10) days unpaid leave when that employee's spouse is on leave from the armed forces. You may also be eligible to take Paid Family Leave when you need time to assist with family situations arising when your spouse, domestic partner, child, or parent is on active service in a foreign country or has been notified of an impending call or order of active service to a foreign country.

For additional information please review the [Leave Administration Handbook](#) and contact your local campus RF Human Resources Office.

[Jury Duty](#)

If you are called to jury duty, you will receive the necessary time off with full pay to fulfill this civic obligation. You should request jury duty leave from your supervisor in advance and provide them with the necessary documentation (jury duty voucher).

The RF also allows time off for the following additional types of leave:

[Cancer Screening Leave](#)

The RF allows employees paid leave time to undertake screening for any type of cancer.

[Voting Time Leave](#)

You may be allowed paid leave time in order to vote in federal, state and local elections, both primary and general elections, if unable to vote outside of working hours.

[Blood Donation Leave](#)

Employees will be paid for a reasonable amount of time for blood donation that occurs at or in connection with the campus location.

Bone Marrow Donation

The RF provides unpaid leave to employees who seek to undergo a medical procedure to donate bone marrow.

Crime Victims/Witness Leave

The RF will provide unpaid leave to employees who may be a victim of a criminal offense or who are subpoenaed to attend a criminal proceeding as a witness or for certain other related reasons.

Volunteer Emergency Responder Leave

The RF provides employees unpaid leave to work as a volunteer emergency responder when a state of emergency is declared by the federal or state government.

Paid Prenatal Leave

The RF provides eligible employees with 20 hours of paid prenatal leave during any 52-week period for your own pregnancy or pregnancy-related healthcare services.

Please contact your local campus RF Human Resources Office for additional information.

Personal Leave of Absence

You may be eligible for an unpaid personal leave of absence which may not extend past your appointment end date. Requests for a personal leave of absence must be reviewed by your supervisor.

Child Care Leave

All employees are eligible for leave without pay for childcare for up to six months immediately following the date of birth or placement for adoption or foster care. Leave cannot extend beyond the period of appointment. The leave period includes the period of medical disability following childbirth, Family Medical Leave and New York State Paid Family Leave, if applicable.

Family and Medical Leave

The RF will grant Family and Medical Leave in accordance with the requirements of applicable federal law in effect at the time the leave is requested.

Eligible employees may receive up to a total of 12 workweeks (26 weeks for military caregiver leave) of job-protected, unpaid leave during a “rolling” 12-month measured backward from the date of any FMLA usage.

Leave may be used for one or more of the following reasons:

- for the birth of a child or placement of a child with an employee for adoption or foster care
- to care for an immediate family member (spouse, child, or parent) with a serious health condition
- to take medical leave when the employee is unable to work because of their own serious health condition

- a qualifying exigency that arises while a covered service member is on or called to active duty
- to care for a service member who has a serious illness or injury that was incurred in the line of duty while on active duty

Employees may take Family and Medical Leave intermittently or on a reduced schedule which means taking leave in separate blocks of time, or by reducing their normal weekly or daily work schedule.

Family and Medical Leave is unpaid. As outlined in the Paid Time Off section of this handbook, the RF may require you to use, or you may choose to use appropriate accrued paid time off. You may also use other leave or income replacement programs, if applicable.

Please contact your campus office that handles RF Human Resources as soon as you become aware of the need for a Family and Medical Leave. Your campus HR office will provide you with information regarding leave benefits and eligibility.

Under most circumstances, upon return from Family and Medical Leave, you will be reinstated to your previous position, or to an equivalent job with equivalent pay, benefits and other employment terms and conditions. However, upon return from a Family and Medical Leave, you have no greater right to reinstatement than if you had been continuously employed rather than on leave.

For additional information on these types of leave without pay, please review the [Leave Administration Handbook](#) and contact your local campus RF Human Resources Office.

New York State Paid Family Leave

RF employees working 20 or more hours per week are eligible for Paid Family Leave after 26 consecutive weeks of employment. Employees who work less than 20 hours per week are eligible after completing 175 days worked. Employees must work in New York State to be eligible for this benefit.

New York State Paid Family Leave (PFL) provides job-protection and income replacement to eligible employees who need to be away from work for the following reasons:

- to take care of a seriously ill family member (spouse, domestic partner, child/stepchild and anyone for whom you have legal custody, parent/stepparent, parent-in-law, grandparent, grandchild, and sibling);
- to bond with a newborn, adopted, or foster child in the first 12 months after birth or placement;
- to attend to family issues related to a qualifying military deployment;
- or to care for a minor dependent child subject to COVID-19 quarantine/isolation.

Employees may take PFL intermittently--which means taking leave in blocks of time, or by reducing their normal weekly or daily work schedule. Certain restrictions on these benefits may apply.

Your local campus RF Human Resources Office will provide you with information regarding leave benefits and eligibility.

The PFL benefit is 67% of your average weekly wage (AWW), not to exceed 67% of the New York State AWW, which is adjusted annually.

Eligible employees may use appropriate accruals while on leave and should discuss this option with your campus Human Resources representative.

Employees will pay for the coverage through payroll deduction.

Employees whose appointment meets (or is expected to meet at the time of hire) the eligibility criteria cannot opt out of the program and payroll deductions except in rare circumstances, where the employee will never meet the eligibility criteria. If you do not believe you have met, or will ever meet, the eligibility criteria listed above, then you may submit an [Employee Opt-Out of Paid Family Leave Benefits](#) waiver form to opt out of the program and payroll deductions. Waivers will be reviewed and approved by the campus Human Resources Office. If you opt out of payroll deductions and subsequently meet the eligibility criteria, then payroll deductions that were missed will need to be paid retroactively.

The federal FMLA provides job-protected leave for many of the same reasons as Paid Family Leave. Because the law shares many of the same requirements and definitions as the FMLA, in most cases the two leave of absence programs will be applied concurrently, NOT one after the other.

Under most circumstances, upon return from Paid Family Leave, you will be reinstated to your previous position, or to an equivalent job with equivalent pay, benefits and other employment terms and conditions. However, upon return from Paid Family Leave, you have no greater right to reinstatement than if you had been continuously employed rather than on leave.

For additional information on leave you may contact your local campus RF Human Resources Office or consult the [Leave Administration Handbook](#).

Benefits

Benefits for All Employees

The RF offers a wide range of benefits to employees. The following benefits are available to all employees.

Workers' Compensation Insurance

Workers' compensation is insurance that provides cash benefits if you are unable to work because of an injury or illness directly caused by your job. It also provides medical care for workers who are injured or become ill as a direct result of their job. The RF pays the full cost for this insurance.

If you are eligible for income replacement benefits, you will receive up to two-thirds of your average weekly wages, but no more than the maximum benefit set by the New York State Workers' Compensation Board. The average weekly wage is based on payroll records for the year prior to the date of disability or accident. Workers' Compensation benefits will continue until your physician approves your return to work. Contact your local campus RF Human Resources/Benefits office if you want to file a claim.

Employees who are injured or become ill as a direct result of their job must report it to your local campus RF Human Resources Office as soon as reasonably possible, so a claim may be filed. Failure to promptly notify the RF of your work-related injury or illness may result in a delay or denial in benefits.

Short-Term Disability Benefits

The RF provides insurance coverage to replace a portion of your income when you are unable to work because of an illness or injury that was not caused by your job and pays the full insurance cost. There is no waiting period if eligibility was established with a previous employer.

Otherwise, coverage begins after 4 consecutive weeks of service for full-time employees or after 25 regular workdays for part-time employees. Benefits begin after a seven-calendar day waiting period or after your sick accruals have been exhausted, whichever is later. You are eligible to receive 50 percent of your average salary up to the maximum benefit established under the law (currently \$170 per week). You can receive benefits while you remain disabled, up to 26 weeks.

Please contact your local campus RF Human Resources office if you need to file a claim.

The RF has no involvement in and does not make the determination as to whether an employee is eligible for short-term disability benefits.

Unemployment Insurance

You are eligible to file a claim if you are involuntarily separated from employment with the RF, or in situations where you have a reduction in hours. The first week of unemployment is an unpaid waiting period. The RF pays the full cost of this benefit. The weekly benefit amount paid to you is based on your wages and a Department of Labor (DOL) formula. Benefits end when you are no longer unemployed or after 26 weeks have elapsed since the day you began receiving benefit payments, whichever occurs first.

The RF has no involvement in and does not make the determination as to whether an employee is entitled to unemployment insurance benefits. Please contact your local New York State DOL office, if you need to file a claim.

RF Ride Commuter and Parking Benefit

[RF Ride](#) allows all RF employees to pay for public transportation and parking expenses needed to commute to RF employment using pre-tax income. Your purchases are made by payroll deduction and no state or federal income tax, Social Security tax, or Medicare tax is owed on qualifying expenses.

Please contact your local campus RF Human Resources Office to enroll.

International Travel Assistance

The RF provides [International Travel Assistance](#) insurance to RF employees who are traveling outside the country on official RF business, and pays the full cost of coverage. This includes worldwide emergency assistance, global security services, medical advice and referrals, emergency evacuation, and health care that is needed due to illness or injury during travel. If you will be traveling internationally on a sponsored program or other RF business, please contact your local campus RF Benefits office for more information.

New York College Savings Program

Employees may participate in the [New York College Savings Program](#) through direct deposit. Contributions are deductible from New York State gross income, and earnings are not taxed by state or federal government when used for qualifying educational expenses.

Additional Benefit Information

Additional benefits are offered based on your type of RF employment. A brief listing is provided below. Please refer to the following handbooks for more information, including eligibility requirements and employer-employee cost sharing:

- [Benefits Handbook for Regular Employees](#) (Includes Retirement Plan information for Summer Employees)
- [Benefits Handbook for Postdoctoral Employees](#)
- [Graduate Student Employee Benefits Handbook](#)

Benefits for Regular and Postdoctoral Employees

You are a regular employee if you do not have a summer-only appointment, are not a full-time SUNY employee, and are not a full-time SUNY student working in an RF student title. Employees working at least 50 percent of full-time effort are eligible for the following benefits. Refer to the Benefits Handbook for details.

- [Health](#), [Dental](#), and [Vision](#) care insurance
- Pre-tax health, dental and vision insurance contributions
- [Health Care Flexible Spending Account](#) for uninsured health, dental and vision expenses
- [Dependent Care Flexible Spending Account](#) for child/dependent day care
- [Life insurance](#) and [Voluntary Short-term Disability insurance](#)
- [Long-term](#) Disability insurance (for full time employees only)
- [Basic](#) and [Optional](#) Retirement Plans
- [Auto, homeowner's and renter's insurance discounts](#)
- [Pet Insurance](#)

Benefits for Summer Employees

You are a summer employee if your RF employment is for a summer appointment only, and you are not a graduate or undergraduate student employee. This includes SUNY faculty who work on RF projects during the summer. Please note: most summer employees need to apply for Prior Service Credit with an eligible employer, prior to being eligible to participate in the basic

retirement plan.

- [Basic](#) and [Optional](#) Retirement Plans

Benefits for Graduate Student Employees

You are a graduate student employee if you are a SUNY graduate student employed by the RF in an eligible RF student title and your work coordinates with your education and training, leading to the fulfillment of academic requirements. As a salaried graduate student, you may be eligible for the following benefits:

- [Health](#), [Dental](#), and [Vision](#) care insurance
- Pre-tax health insurance contributions (which include dental and vision coverage)
- [Auto, homeowner's, and renter's insurance discounts](#)
- [Pet Insurance](#)

Refer to the [Graduate Student Employee Benefits Handbook](#) for more information on eligibility.

Benefits for Undergraduate and Hourly Student Employees

You are an undergraduate student employee if you are a SUNY undergraduate student employed by the RF in an RF student title and your work coordinates with your education and training, leading to the fulfillment of academic requirements.

- No additional benefits

Note: The Affordable Care Act (ACA) requires large employers like the RF to offer health coverage to employees who average 30 hours per week for an extended period of time. However, undergraduate and other hourly paid students, even though they may work full-time during the summer, will not be eligible for RF health coverage since their hours are limited to part-time during the academic year.

If you have questions about your classification or benefits eligibility, please contact your local campus RF Human Resources Office.

Other Services Offered

Employee Assistance Program (EAP)

Many campus locations offer RF employees and their families' assistance and confidential referral services for personal issues and concerns. For more information, contact your local campus RF Human Resources Office.

Communications

The RF sends communications to keep employees and other stakeholders informed of RF and SUNY business and achievements. Much of this information is posted and available on the [RF Website](#) and [RF Facebook](#) page.

Posting Notices

Postings containing official notices on employee rights under various federal, state, and local

laws are available electronically through the [Posting Notices](#) document and on bulletin boards at your campus location.

If you do not know the location of the bulletin board for posting notices, please contact your local campus RF Human Resources Office.

Contacts

If you have any questions about this Employee Handbook, please contact:

Central Office Human Resources

(518) 434-7080

hra@rfsuny.org